

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MR-2 MEDIUM DENSITY RESIDENTIAL-DEVELOPING FOR A REPLAT OF ALL OF LOT 2 AND A PORTION OF LOT 3, BLOCK 1, SADDLE RIDGE, CHEYENNE, WYOMING, TO BE KNOWN AS SADDLE RIDGE, 7TH FILING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF US HIGHWAY 30 AND WHITNEY ROAD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 3, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a replat of all of Lot 2 and a portion of Lot 3, Block 1, Saddle Ridge, Cheyenne, Wyoming, to be known as Saddle Ridge, 7th Filing (replat in process), is hereby changed to MR-2 Medium Density Residential-Developing.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated ***Saddle Ridge, 7th Filing***, final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Saddle Ridge, 7th Filing Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00421

SUBDIVISION CODE: SDRA

PREPARED BY: Josh Tetzlaff

MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Development Department recommends approval of the zone change request from CB Community Business to MR-2 Medium Density Residential-Developing for the subject area to be known as Saddle Ridge, 7th Filing.

PLANNING COMMISSION UPDATE (8/3/15): At its regular meeting on August 3, 2015, the Planning Commission voted unanimously, 6 to 0, to approve the zone change request for Saddle Ridge, 7th Filing.

CITY COUNCIL RECOMMENDATION: The Development Department recommends approval of the zone change request from CB Community Business to MR-2 Medium Density Residential-Developing for the subject area to be known as Saddle Ridge, 7th Filing.

STAFF REPORT

Saddle Ridge, 7th Filing Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00421 **SUDBDIVISION CODE:** SDRA
PREPARED BY: Josh Tetzlaff
MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

OWNER: William J. Edwards 307.634.8400
Saddle Ridge, LLC
506 Shoshoni Street
Cheyenne, WY 82009
AGENT: John Edwards 307.634.8800
Edwards Development, LLC
506 Shoshoni Street
Cheyenne, WY 82009

PROJECT: Saddle Ridge, 7th Filing Zone Change

WORK DESCRIPTIONS: Change from CB to MR-2

LOCATION:

1. Legal Description: a replat of all of lot 2 and a portion of Lot 3, Block 1, Saddle Ridge, Cheyenne, Wyoming
2. Location: the southeast corner of the intersection of US Highway 30 and Whitney Road
3. Address: N/A

SIZE: Total site: 15.74 acres

CURRENT ZONING: CB Community Business

PROPOSED ZONING: MR-2 Medium Density Residential-Developing

EXISTING LAND USE: Undeveloped

PROPOSED LAND USE: Residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	US Highway	N/A	City
South	Residential	MR-2	City
East	Residential	MR-2	City
West	Low-Density Residential	AR	City

EXECUTIVE SUMMARY:

This application for a zone change from CB Community Business to MR-2 Medium Density Residential-Developing for property at the southeast corner of US 30 and Whitney Road. The application was submitted with a final plat application as well as a future land use map amendment request. A future land use map amendment was submitted due to the map stating this area should be developed as Community Business. According to W.S. § 15-1-601, zoning decisions should be made in accordance with the comprehensive plan. Amending the map would allow the map and zoning to be aligned.

Should the future land use map amendment be approved, a change to MR-2 would be a consistent change in the area. With single family detached homes and twin homes immediately to the south and east, building more twin homes would be compatible with the surrounding area. If the twin homes are built, it is expected they will be built in conformance with the standards of the MR-2 district as well as the sub division standards of Article 4.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of the zone change, advancing it to the Governing Body.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

PlanCheyenne recommends a Future Land Use Category of Community Business for the subject area. The Community Business land use designation intends for commercial land uses to be used and dissuades residential uses. Due to this, the applicant has also submitted a future land use amendment request that would amend the area to be Urban Residential. If granted, the Urban Residential future land use would be an ideal fit for the MR-2 Medium Density Residential-Developing zone district.

The Urban Residential district is designed for a variety of housing types and densities. The proposed twin homes would be a use that is described directly by ShapeCheyenne, the future land use portion of the Comprehensive Plan. According to W.S. § 15-1-601, zoning decisions must be made in accordance to the comprehensive plan. To change the zone district to MR-2, a change must also be made to the future land use map in PlanCheyenne.

SURROUNDING AREA - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The application is not consistent with the uses currently recommended in PlanCheyenne but should the future land use map be change, the application would be consistent. The area was originally laid out with commercial in mind but due to market forces in the area, commercial uses have not developed in the area as hoped by the owner. Converting the area to residential townhomes would be compatible with the surrounding area as are there twin homes and detached single family homes immediately to the south and east.

ZONING: BASIC STANDARDS & USES - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

Under the existing zone district, residential uses are not allowed. For twin homes to be built on this property, the zone district must be changed to a zone that allows for residential uses. The proposed MR-2 zone district would allow for the twin homes to be built. It is expected the twin homes would be built according to all standards of the MR-2 zone district.

STREETS & OPEN SPACE - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

This Zone Change request has been submitted in conjunction with a replat. This replat, if approved, would allow for the area to be developed as residential within the standards of Article 4. New rights-of-way are being proposed to serve the new twin homes and it is expected that

these rights-of-way would be constructed to meet current standards. Open Space is being evaluated with the Final Plat application that was also submitted. In short, this development would meet exceptions that are available within the UDC for requiring additional open space in the neighborhood due to sufficient open space already being provided.

ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The MR-2 Medium Density Residential-Developing zone district is intended for a variety housing densities and types. The proposed twin homes would be able to meet the Intent and Applicability of the MR-2 district. Design standards do not currently exist within the MR-2 district for single family residential units.

ZONING: FUTURE DEVELOPMENT - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

This zone change request is dependent on the recordation of the associated plat. The associated plat would replat the area out for ninety (90) residential lots. If this development falls through, the plat and zone change would allow the area to be purchased by another developer and make it ready to build housing units.

Reviewing Agencies w/ Comments:

- Development Department (Josh Tetzlaff) **(Correct Prior to Approval)**
 - o Please remove "Subdivision" and "City of" from the title block.
 - o Plat Note #1: Parks & Rec has made a previous comment (see preliminary plat comments) that it is not interested in Lot 1, Block 1 without amenities being included. Please contact Parks & Rec to clear up.
 - o Plat Note #2: Lot 1, Block 2, is to be donated to the Engineering Department for drainage purposes. If listed on the zone change map, please correct.

Reviewing Agencies w/o Comments:

- City Engineer (Nathan Beauheim)
- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)

Reviewing Agencies not Responding:

- None

Other Comments Received:

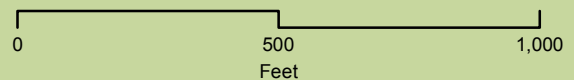
- None

cc: Owner
Agent/Applicant
File

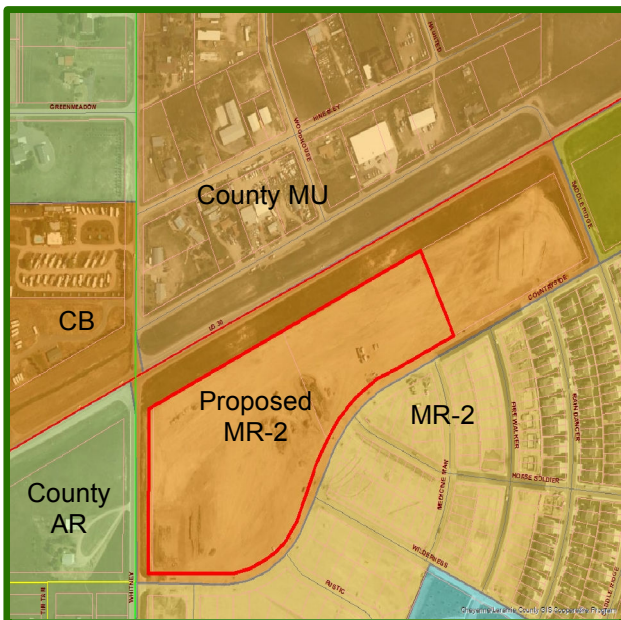
Saddle Ridge, 7th Filing Comp Plan Amendment, Zone Change, & Final Plat



Applicant: Saddle Ridge, LLC
Agent: John Edwards, Edwards Development, LLC
Application Numbers
Comp Plan: PLN-15-00011 Final Plat: UDC-15-00425
Zone Change: UDC-15-00421

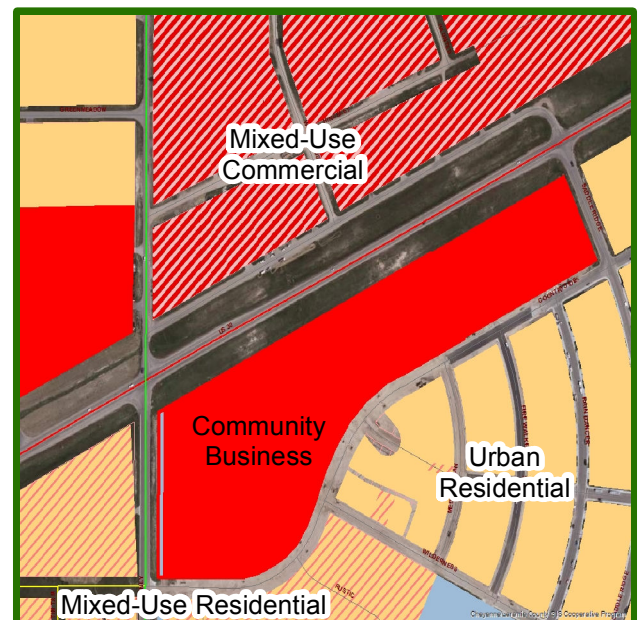


Zone Districts

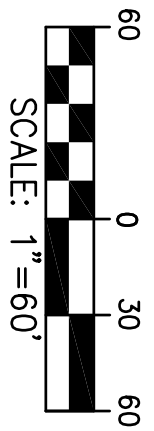


This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



FOUND 1½" ALUMINUM CAP
STAMPED "SSS P.L.S. 5910"



1.) BASIS OF AZIMUTH - CITY OF CHEYENNE DATUM
REFERENCED FROM CITY CONTROL MONUMENTS
"DELL RANGE" AND "EAST".

- 2.) THIS PROPOSED PLAT DOES NOT FALL WITHIN ANY FEMA 100 YEAR FLOOD PLAIN.
- 3.) UTILITY EASEMENTS ALONG STREETS ARE 10' WIDE UNLESS OTHERWISE NOTED.

CURRENT ZONING	CB
PROPOSED ZONING	MR-2



DESCRIPTION

A TRACT OF LAND BEING ALL OF LOT 2 AND A PORTION OF LOT 3, BLOCK 1, SADDLE RIDGE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING, THE NORTHWEST CORNER OF LOT 2, THENCE 64° 21' 04" ALONG THE NORTH LINE OF LOTS 2 AND 3, A DISTANCE OF 125.94 FEET, ALONG THE NORTH LINE OF LOT 2, A DISTANCE OF 125.94 FEET TO THE NORTHEAST CORNER OF THAT PARCEL OF LAND RECORDED IN BOOK 2361, PAGE 864, LARABEE COUNTY CLERK'S OFFICE. THENCE 154° 20' 24" ALONG THE WEST LINE OF SAID PARCEL, A DISTANCE OF 331.19 FEET TO THE NORTH LINE OF COUNTRYSIDE AVENUE. THENCE ALONG SAID NORTH LINE FOR THE FOLLOWING 3 COURSES: THENCE 244° 20' 24" A DISTANCE OF 293.26 FEET TO THE BEGINNING OF A CURVE TO THE LEFT; THENCE 41° 45' ALONG SAID CURVE THROUGH AN ANGLE OF 41° 24' 38" 1/2, HAVING A RADIUS OF 573.62 FEET, AND WHOSE LONG CHORD BEARS 38° 15' 58" A DISTANCE OF 405.62 FEET; THENCE 205° 33' 39" A DISTANCE OF 240.11 FEET TO THE BEGINNING OF A CURVE TO THE RIGHT THENCE 406.08 FEET ALONG SAID CURVE THROUGH AN ANGLE OF 67° 28' 45", HAVING A RADIUS OF 344.81 FEET, AND WHOSE LONG CHORD BEARS 15° 23' 15" 43" A DISTANCE OF 383.02 FEET; THENCE 270° 00' 00" A DISTANCE OF 297.04 FEET TO THE WEST LINE OF LOT 2. THENCE 00° 10' 53" ALONG SAID WEST LINE, A DISTANCE OF 392.06 FEET TO THE POINT OF BEGINNING, CONTAINING 15.74 ACRES, MORE OR LESS.

COMPUTATION TABLE

TOTAL PLAT AREA:	15.74 ACRES
SELLABLE LOTS:	685634 SQ.FT.
LOT AVERAGE:	5,397 SQ.FT.
LOT MAXIMUM	9,758 SQ.FT.
LOT MINIMUM	4,620 SQ.FT.
LOT COUNT	90
GRIEABLE LOTS:	
LOT COUNT	2
LOT AREA	1.50 ACRES
	65,448 SQ.FT.
ROAD RIGHT OF WAY AREA:	3.21 ACRES
	139,840 SQ.FT.

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD AZIMUTH	CHORD LENGTH	ARC LENGTH
C1	41° 24' 38"	573.62'	226° 15' 58"	405.62'	414.59'
C2	67° 28' 35"	344.81'	236° 15' 45"	383.02'	406.08'

501 ACADEMY CT SUITE 200
FORT COLLINS, CO 80524
307-630-5421

501 ACADEMY CT SUITE 200
FORT COLLINS, CO 80524
307-630-5421

SADDLE RIDGE, LLC
506 SHOSHONI
CHEYENNE, WY 82009
307-634-8400

SADDLE RIDGE, LLC
506 SHOSHONI
CHEYENNE, WY 82009
307-634-8400

506 SHOSHONI
CHEYENNE, WY 82001
307-634-8800

506 SHOSHONI
CHEYENNE, WY 82001
307-634-8800

PLAT NOTES

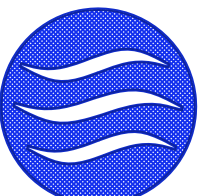
- 1) LOT, BLOCK ONE TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.
- 2) LOT 1, BLOCK TWO TO BE DONATED TO THE CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT FOR GREENWAY PATHWAY AND PUBLIC USE.

FEELING

A REPLAT OF ALL OF LOT 2 AND A
PORTION OF LOT 3, BLOCK 1,
SADDLE RIDGE SUBDIVISION
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED June 15

REMOVED: 6/19/2015



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
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